

2022 P T D 1627

[Lahore High Court (Multan Bench)]

Before Jawad Hassan, J

ASHIQ ALI CHAUDHARY

Versus

FEDERAL BOARD OF REVENUE and others

Writ Petition No.5466 of 2021, decided on 7th April, 2021.

Income Tax Ordinance (XLIX of 2001)---

---S.127---Income Tax Rules, 2002, R.76---Constitutional petition---Appeal to the Commissioner (Appeals)---Prescribed form of appeal to the Commissioner (Appeals)---Scope---Case of petitioner was that he was required to file an appeal under S. 127 of Income Tax Ordinance, 2001; that R.76 of the Income Tax Rules, 2002, provided that remedy of appeal could only be availed electronically, as such, the same was unconstitutional being contrary to the provisions of Art.10-A of the Constitution and that the impugned order had been passed without any Bar Code mechanism as per requirement of IRIS Web Portal due to which the petitioner was unable to file appeal electronically, hence, he sought indulgence of High Court to direct the respondents to allow him to file the appeal manually---Validity---Held; if the impugned order was issued without any Bar Code mechanism, the petitioner would be allowed by the competent authority/forum to manually file appeal under S. 127 of the Income Tax Ordinance, 2001, along with application for condonation of delay otherwise the law would take its own course---Constitutional petition was disposed of accordingly.

Muhammad Imran Ghazi for Petitioner.

Mehar Zameer Hussain Iqbal, Deputy Attorney General (on Court call).

Tariq Manzoor Sial and Malik Muhammad Shahzad Awan for Respondent FBR (on watching brief).

Date of hearing: 7th April, 2021.

JUDGMENT

JAWAD HASSAN, J.----The Petitioner has drawn attention of this Court on the issue of filing an appeal under Section 127 of the Income Tax Ordinance, 2001 (the "Ordinance") electronically on IRIS Web Portal as per the Bar Code mechanism of the said web portal.

2. Learned counsel for the Petitioner submits that the Respondent No.6 issued assessment order dated 25.02.2021 (the "Impugned Order") against the Petitioner by raising certain demand on account of income tax under Section 161 read with Section 205

of the Ordinance, which order can only be challenged by filing an appeal under Section 127 of the Ordinance before the Respondent No.7. He further submits that as per the new amendment made in Rule 76 of the Income Tax Rules, 2002 (the "Rules") under SRO No.1315(I)/2020 dated 09.12.2020, the said remedy of appeal can only be availed electronically, which is unconstitutional being contrary to the provisions of Article 10A of the Constitution of Islamic Republic of Pakistan, 1973, providing right of fair trial and due process to every citizen of Pakistan, as well as Circular dated 28.01.2021 issued by the Revenue Division, Federal Board of Revenue, Inland Revenue, Islamabad. He maintains that the Impugned Order has been issued by the Respondent No.6 without any Bar Code mechanism as per requirement of the IRIS Web Portal due to which the Petitioner is unable to file appeal electronically, hence, he has sought indulgence of this Court to direct the Respondents to allow him to file the appeal manually.

3. When confronted with the objection taken by learned counsel for the FBR that the statutory period of thirty days to file appeal under Section 127 of the Ordinance has already been elapsed, therefore, the writ is not maintainable, learned counsel for the Petitioner submits that the intervening period of delay may be condoned by the concerned authority if the Petitioner files an application for condonation of delay along with the appeal.

4. In view of the above, if stance of the Petitioner that the Impugned Order has been issued by the Respondent No.6 without any Bar Code mechanism as per requirement of the IRIS Web Portal, is found correct then he will be allowed by the competent authority/forum to manually file appeal under section 127 of the Ordinance along with application for condonation of delay otherwise the law will take its own course.

Disposed of.

SA/A-17/L

Order accordingly.